

TENTATIVE RULING

Case: **Vigil v. City of Woodland et al.**
Case No. CV2025-0344

Hearing Date: **April 16, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Young v. American Honda Motor Company, Inc.**
Case No. CV2023-1242

Hearing Date: **April 16, 2026** **Department Fourteen** **9:00 a.m.**

The Court declines to consider new facts raised in plaintiff Jared C. Young's reply. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770.)

The Court rules on plaintiff's motion for attorney's fees, costs, and expenses (Cal. Rules of Court, rule 3.1702; Code Civ. Proc., § 1794) as follows:

- Plaintiff's request for anticipated fees in the amount of \$2,175.00 is **DENIED**. (*Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 470 [fees must have been actually incurred to be recoverable].)
- Plaintiff's request for costs in the amount of \$768.70 is **DENIED**. Defendant American Honda Motor Company, Inc., has produced undisputed evidence that these costs have already been paid. (Chen Decl., ¶¶ 7, 8, Exhibits A, B.)
- The Court finds that plaintiff's counsel's hourly rates are reasonable and commensurate with the rates in Yolo County. (See *Margolin v. Regional Planning Com.* (1982) 134 Cal.App.3d 999, 1005; *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1004; *Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 71 – 72; *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243; Song Decl., ¶¶ 11 – 16, 18, 29, 23.)
- The Court finds that except for the time entries identified below totaling \$216.00, all of the time expended by plaintiff's counsel was necessary and reasonable. (*Thon v. Thompson* (1994) 29 Cal.App.4th 1546, 1548–1549; *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; see *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396 [“...verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.”]; *Sundance v. Municipal Court* (1987) 192 Cal.App.3d 268, 274 [it is well settled that awards of attorneys' fees for paralegal time have become commonplace]; *California DUI Lawyers Assn. v. Department of Motor Vehicles* (2022) 77 Cal.App.5th 517, 537 [if the billing entries sufficiently establish the tasks were carried out in connection with the litigation, the fact that they were block billed is of no consequence]; see also *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564 [“In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.”]; Song Decl., ¶ 26, Exhibit 12.)
 - May 9, 2023: Cesar Utay - \$19.50;
 - May 10, 2023; Cesar Utay - \$19.50;
 - August 29, 2024: Tomas De Jesus – \$118.50; and